

VCU320350 Setton Pistachio of Terra Bella vs. Eastern Tule Groundwater Sustainability Agency

County: tulare

Division: Civil Law and Motion

Department: 1-Honorable David C. Mathias

Hearing date: 2026-09-17

Motion: Motion for Relief from Waiver of Attorney-Client Privilege and Work Product Objections

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Re: Setton Pistachio of Terra Bella vs. Eastern Tule Groundwater Sustainability Agency

Case No.: VCU320350

Date: September 17, 2026

Time: 8:30 A.M.

Dept. 1-Honorable David C. Mathias

Motion: Motion for Relief from Waiver of Attorney-Client Privilege and Work Product Objections

Tentative Ruling: To grant the motion.

Setton Pistachios of Terra Bella, Inc. (Setton) served demands for production of documents on Eastern Tule Groundwater Sustainability Agency (ETGSA) on October 24, 2025. According to ETGSA's counsel, Ron Statler, ETGSA was granted two extensions that were confirmed in writing. Statler does not state when the extensions expired. Statler states that later, "[o]n or about June 22, 2026," Setton's counsel, Nicolas Cardella, "asked that [ETGSA] respond to the outstanding discovery," and "mentioned a waiver of objections." Statler told Cardella he "believed [they] were working under an ongoing extension," but Cardella said "he did not have a record of that in his communications" and Statler "could not find one, either." Statler admits he "failed to confirm an ongoing extension in writing"; it "was [his] fault"; and he states he "proceeded under the mistaken belief that [he] had a written extension agreement ... until June 22, 2026."

ETGSA here moves for relief from waiver of objections to Setton's document demands that are included in responses ETGSA ultimately served on July 15, 2026.

Code of Civil Procedure section 2031.300, subdivision (a) states: "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it ... [t]he party to whom the demand ... is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)."

Subdivision (a) additionally states, however: "The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is

in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect."

Staler states the parties were engaged in settlement discussions and he "proceeding with [those discussions] under a mistaken belief that discovery due dates were extended while an active settlement discussion proceeded," during which "discovery was not mentioned." Statler recognizes he "should have been vigilant in securing written extensions," but states he "mistakenly believed an ongoing one was in place," and, having found opposing counsel, in prior experiences, generally "reasonable and accommodating," was "lulled ... into not being a vigilant as [he] should have been."

Staler's declaration includes ETGSA's discovery responses, which he represents "includes a response to Plaintiff's Request for Production of Documents and [a] privilege log" and "[o]bjections based on attorney client privilege and third-party privacy." ETGSA contends its responses "provided notwithstanding its privacy and attorney-client privilege objections, comply with the requirements of sections 2031.220 and 2031.230."

Setton opposes the motion, identifying various asserted defects in ETGSA's late discovery responses, and contending that, incident to these defects, the responses are not substantially compliant. Additionally, Setton contends Statler's declaration does not establish mistake, inadvertence, or excusable neglect.

The court finds ETGSA's late responses meet the minimal standard of substantial compliance with Code of Civil Procedure sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. This is not to say ETGSA is immune from a subsequent motion to compel further responses, or monetary sanctions, but, rather, the court's determination is that Setton's contentions largely concern technical defects better addressed in a motion to compel further responses.

The court additionally finds ETGSA has made a sufficient showing, based on the declaration of Staler, of excusable neglect. This determination is informed by the undisputed facts that the parties were engaged in settlement discussions for months after expiration of the prior discovery deadline extensions had expired, during which time Setton did not raise the issue of its outstanding discovery. Setton did not address the outstanding discovery issues until June 2026. Additionally, not disputed is that ETGSA had largely ceased operations by October 2025 incident to SWRCB's probationary designation, and was winding up its business at that time.

Again, none of this immunizes the possibility of a further motion to compel or potential monetary sanctions. The court's limited determination here is that ETGSA establishes a basis for relief from its waiver of objections.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.